REPORTABLE (6)

INDUSTRIAL AND FARMING DEVELOPMENT FOR THE DISABLED (PRIVATE) LIMITED

v

1. ELVIS TENDAI KASANHAYI

2. SHERIFF OF ZIMBABWE

HARARE, 1 JUNE 2026

Chamber Application for Condonation

PATEL JCC: This is an opposed application for condonation, brought in terms of s 167 of the Constitution of Zimbabwe, as read together with rr 18 and 25 of the Constitutional Court Rules, 2025. The applicant seeks condonation for the late filing of its intended Constitutional Court application, wherein it seeks relief in terms of s 175 of the Constitution.

The Background

The applicant is Industrial and Farming Development for the Disabled (Pvt) Ltd, a company duly incorporated in terms of the laws of Zimbabwe. The first respondent is Elvis Tendayi Kasanhayi. The second respondent is the Sheriff of Zimbabwe, cited in his official capacity. The background to the present application is as follows.

On the 13 October 2023, the applicant and the first respondent entered into an agreement of sale in terms of which the first respondent purchased from the applicant a stand

situated at No. 10586 Highfield Township of stand 8633 Highfield Township, measuring 9792 square metres, for the purchase price of US$ 260,000.00 payable against transfer. The first respondent paid the full purchase price and also paid for the rates clearance with the City of Harare. The applicant, in turn, was contracted to transfer the property into the first respondent's name but, despite several demands, the applicant has not transferred the property.

The first respondent then issued summons on 4 January 2024 in the High Court, in which he claimed the transfer of the property from the applicant into his name. The applicant entered an appearance to defend on 22 January 2024 and filed its plea on 8 February 2024. In its defence, the applicant stated that it wanted to pass transfer but that the first respondent was not ready. Further, the applicant stated that the first respondent had not paid stamp duty and conveyancing fees for the purposes of transfer.

The first respondent then applied for summary judgment. In determining the application, the High Court held that the first respondent had paid the full purchase price, which the applicant itself had received in full. Further, the court concluded that the applicant had not transferred title, with no reasonable justification having been shown for its failure or refusal to pass title to the purchaser. The court also concluded that the defences put up by the applicant were nothing but bald assertions. It was the court's finding that the applicant's refusal to pass transfer was not predicated on any alleged breach of the agreement of sale and that the applicant was simply clinging to the property after accepting the purchase price. As a result, the High Court granted the application for summary judgment and ordered that the applicant transfer the property into the first respondent's name.

Aggrieved by the High Court's decision, the applicant then filed an appeal to the Supreme Court on 07 October 2025. The appeal by the applicant under SC 796/25 was dismissed by consent on 23 January 2026.

The Present Application

It is the aforesaid decision of the Supreme Court that has led to the present application. The applicant states that the alleged misdirections at both the High Court and Supreme Court stages resulted in a violation of its right to a fair hearing as protected under s 69(1) of the Constitution. According to the applicant, when the first respondent instituted proceedings in the High Court seeking summary judgment, it opposed the application, placing before court evidence showing the existence of serious and material disputes of fact. The applicant contends that, notwithstanding this, the court granted summary judgment on the basis of an unsigned application for summary judgment, contrary to the High Court Rules.

The applicant further contends that when it noted an appeal to the Supreme Court, the High Court refused to transmit the full record of proceedings to the Supreme Court. The applicant states that it was thereafter confronted with a Supreme Court order, dated 23 January 2026, dismissing its appeal and recorded as having been granted "by consent". The applicant avers that no consent was ever given by the applicant or any authorised representative. It is on this basis that the applicant prays for the granting of the present application for condonation for the late filing of its intended Constitutional Court application.

The relief that the applicant seeks in that application is that the proceedings and orders of the High Court and Supreme Court be declared constitutionally invalid. It also seeks an order that "the matter be remitted for determination before a competent court on proper citation, valid initiating process and after ventilation of material disputes of fact".

The applicant states that the delay in filing the aforesaid application was minimal. It contends that on day of the prescribed deadline, *i.e.* 13 February 2026, the applicant's representative personally attended the Registry of this Court for the purpose of filing the

application. However, he was informed upon arrival that the Registry closed at 4:00 pm and that the application could not be received on that day.

The applicant further states that the delay in bringing the application before this Court was not wilful, negligent or caused by disregard of the rules. The applicant avers that reasonable steps were taken to file on the prescribed day and that the sole reason for the delay was the administrative closure of the Registry.

The application is opposed by the first respondent. He avers that it is very difficult to answer the present application as it is not clear whether the intended constitutional matter in issue arises as one of direct access to the Court, or by way of referral, or by way of appeal to this Court, or as an interlocutory matter. In short, it is not clear how the constitutional cause of action arises at all. The first respondent contends that the application is seriously prejudicial to him in that he is being dragged to this Court to answer baseless claims of constitutional infringement. He states that the intended application is baseless, frivolous and vexatious and has been brought to delay execution of a full and valid judgment of the High Court in HCH 29/24. The first respondent, therefore, prays for the dismissal of the application with costs.

In response, the applicant maintains that the application should be granted and the interests of justice strongly favour granting condonation so that the Constitutional Court application may be heard. Further, the applicant contends that the respondent's request for punitive costs is unwarranted because the applicant's approach to this Court is *bona fide*.

Analysis

Having considered the present application in detail, I have noted a number of fundamental procedural irregularities in the papers filed of record. These irregularities have persuaded me that it is not necessary for the matter to proceed to an oral hearing and that it

may properly be determined on the papers, with appropriate directions being issued as to the future conduct of the proceedings *in casu*.

While several defects are apparent, the following are, in my view, dispositive of the matter, as their determination bears directly on the course the application should take.

1. The application has no founding affidavit

In its opposition, the first respondent raises a preliminary point to the effect that the application is not supported by a founding affidavit upon which the factual averments founding the cause of action are based, as required by the rules, particularly r 25(1)(b) of the Constitutional Court Rules. The first respondent noted that the application is merely supported by a supporting affidavit, contrary to the practice and procedure of the courts of Zimbabwe that every application should be supported by and stand or fall on a founding affidavit.

In response to this preliminary objection, the applicant contends that the first respondent's technical objections do not address the real issue before the Court, namely, whether the brief delay in filing the constitutional application should be condoned. The applicant further states that the supporting affidavit fully explains the circumstances of the late filing and that these averments satisfy the requirements of r 25(1)(b).

Rule 25(1)(b) of this Court's rules provides as follows:

> "(1) A chamber application shall be in Form CCZ 3 and –
>
> (a)…
>
> (b) be supported by an affidavit detailing the facts and the basis upon which the applicant seeks relief; …"

It is trite that an application stands or falls on its founding affidavit. This principle was elaborated in *Muchini* v *Adams & Ors* S-47-13, at p 4, where the court held that:

> "It is trite that an application stands or falls on the averments made in the founding affidavit. See Herbstein & van Winsen the Civil Practice of the Superior Courts in South Africa 3rd ed p 80 where the authors state:

> 'The general rule, however, which has been laid down repeatedly is that an applicant must stand or fall by his founding affidavit and the facts alleged therein, and that although sometimes it is permissible to supplement the allegations contained in that affidavit, still the main foundation of the application is the allegation of facts stated therein, because these are the facts which the respondent is called upon either to affirm or deny. If the applicant merely sets out a skeleton case in his supporting affidavits any fortifying paragraphs in his replying affidavits will be struck out'."

The same principle was reaffirmed in *Ahmed v Docking Station Safaris Private t/a CC Sales* S-70-18, at p 3.

In casu, the applicant has not filed a founding affidavit, but has instead filed a supporting affidavit in support of the application. This is a fundamental defect. A supporting affidavit, so styled, cannot serve as the foundation of an application. It is merely ancillary and intended to bolster a properly constituted founding affidavit.

Nevertheless, after careful consideration, it appears to me that first respondent is emphasising form over substance in this regard. I am therefore persuaded to agree with the applicant's contention that its supporting affidavit fully explains the circumstances of the late filing and that the averments contained in that affidavit satisfy the essential and critical requirement of r 25(1)(b) – by detailing the facts and the basis upon which the applicant seeks relief. Accordingly, acting in terms of r 6(2)(a), I am inclined to condone this non-compliance with r 25(1)(b).

2. There are no reasons for the judgment a quo

A considerably more fatal irregularity is the applicant's failure to attach the reasons for the court *a quo's* judgment. The applicant seeks, if condonation is granted, to challenge proceedings in the High Court and the Supreme Court on the basis that its rights were violated. It further alleges that the Supreme Court dismissed its appeal by consent when no such consent had been given.

However, the record before this Court is materially deficient. What has been placed before the Court is merely an order dismissing the appeal. There are no reasons from the Supreme Court explaining the basis of that decision.

In these circumstances, it is impossible for this Court to properly assess the applicant's prospects of success. The applicable test was clearly spelt out in *Dinha* v *The State* CCZ-11-20, at p 6:

> "In assessing the prospects of success, the Court is tasked with assessing whether the applicant has established a *prima facie* case which justifies that he be given a day in court. More is required to be established than that there is a mere possibility of success. An applicant must show on a balance of probabilities that he or she or it has reasonable prospects of success and in doing so he or she or it must point to some fault or misdirection in the judgment he or she or it seeks to impugn."

In the absence of the impugned judgment, the applicant cannot point to any misdirection or fault in the reasoning of the court *a quo*. This leaves the Court with no option but to speculate as to the correctness or otherwise of the decision sought to be challenged, an exercise the Court cannot undertake *in vacuo*.

This position was emphatically underscored in *Ilasha Mining (Private) Limited* v *Yatakala Trading (Private) Limited t/a Viking Hardware Distributors* S-61-18, at pp 3-4, where it was held as follows:

> "Apart from the above irregularity the application is a parody of more serious fatal procedural irregularities, chief among them failure to provide a copy of the impugned judgment. It is an exercise in futility for a litigant to attack a judgment of a lower court in a higher court without availing the court *a quo*'s judgment for scrutiny by the higher court to assess the veracity of the applicant's criticism of the judgment. The applicant's failure to avail the impugned judgment before me renders its criticism of the judgment hollow and nugatory.
>
> That finding of fact and law renders the applicant's submissions on its prospects of success valueless and not worth the paper upon which they are written as no weight can be placed on the submissions in the absence of the impugned judgment. Failure to attach the impugned judgment was therefore a fatal grave error."

In casu, the failure to attach the impugned judgment is thus not a mere technical irregularity, but a defect that goes to the root of the application. Without that judgment, this

Court is unable to evaluate whether there are reasonable prospects of success, as required by law.

3. The applicant has not motivated prospects of success

Closely related to the foregoing is the applicant's failure to canvass prospects of success. Even if one were to assume, in the applicant's favour, that the supporting affidavit is intended to serve as a founding affidavit, the application still falls woefully short of the required standard. The affidavit confines itself to explaining the extent of the delay, the reasons therefor and the alleged absence of prejudice. There is no attempt whatsoever to address the prospects of success. This omission is fatal.

The position of the courts on this issue is settled. In *Unki Mines (Pvt) Ltd* v *Dohne Construction (Pvt) Ltd* S-18-23, at p 8, the Supreme Court held as follows:

> "It is clear from the record that the applicant did not canvass the prospects of success. Failure to canvass prospects of success in a founding affidavit is fatal to an application of this nature …. .
>
> *In casu*, the contention made by the respondent in relation to failure to address prospects of success in the founding affidavit has merit. The applicant ought to have explained in detail why it believes its intended appeal has prospects of success rather than merely stating so. The applicant has an obligation to satisfy the Court that once an application for condonation is granted, it has prospects of succeeding on the merits of the matter. These prospects need to be explained in depth in order to convince the Court to grant the application. The applicant failed to advance a case upon which its prospects of success can be assessed. Instead, it only referred to the grounds of appeal."

Although the above decision is not strictly binding on this Court, its reasoning is highly persuasive and directly applicable. The applicant has failed to place before this Court a proper case upon which its prospects of success can be evaluated. There is no substantive engagement with the merits nor any attempt to demonstrate, with particularity, why the intended challenge is likely to succeed. In the absence of such averments, the applicant has failed to satisfy a critical requirement. This defect goes to the root of the application and is not curable. The application is therefore fatally defective on this ground as well.

The position is further compounded by the absence of the Supreme Court's reasons for its decision. As already indicated earlier, what is before the Court is merely the order dismissing the appeal, without any accompanying reasons for that order. In these circumstances, there is no indication of the reasoning adopted by the Supreme Court and, consequently, no identifiable misdirection or error for this Court to interrogate. In effect, there is nothing before this Court upon which any assessment of prospects of success can be made. The Court is left with no factual or legal material to engage with in determining whether the intended application has merit.

Claim for Costs

The first respondent prays that the application be dismissed with punitive costs. In my view, there is no meaningful basis upon which this Court should depart from the settled position that costs are ordinarily not awarded in constitutional matters. The present case discloses no exceptional circumstances warranting a deviation from that approach. The issues raised do not justify the imposition of costs and to do so would risk discouraging litigants from approaching this Court to vindicate constitutional rights. In the circumstances, the usual position ought to prevail as no order as to costs is warranted.

Disposition

The fundamental procedural defects and irregularities identified above are not merely peripheral. They go to the root of the matter and are apparent on the face of the record. They render the application irretrievably defective.

Rule 25 of the Court's rules governs the determination of chamber applications. Rule 25(6) provides as follows:

> "(6) Upon the applicant having complied with subrule (5), the Registrar shall place the application before the Chief Justice or a Judge for determination and he or she may make such order as he or she deems fit:

Provided that where the Chief Justice or the Judge dismisses the application, he or she shall do so with the concurrence of two other Judges of the Court."

This provision vests the Court with the discretion to determine a chamber application on the papers and to make such order as it deems fit – including dismissal or, by necessary implication, removal from or striking off the roll – without the necessity of setting the matter down for oral hearing.

In the present matter, there is no judgment of the court *a quo* to enable this Court to assess the merits of the intended challenge and no proper canvassing of prospects of success. These irregularities render the application fatally and incurably defective. In effect, there is no competent application before the Court.

Consequently, in the exercise of the discretion conferred by r 25(6), I am of the firm opinion that this matter is not deserving of ventilation at an oral hearing. The papers, as they stand, demonstrate that the application is devoid of merit and is doomed to fail. As is the established norm, there should be no award of costs, punitive or otherwise.

Accordingly, it is ordered that the application be and is hereby struck off the roll with no order as to costs.

MAKARAU JCC: I agree.

GOWORA JCC: I agree.

Messrs Mawadze and Mujaya, first respondent's legal practitioners